

the trust do not require a balance to be kept in hand he lend a sum to the bank at interest upon no other security than their notes, for this in effect cannot be distinguished from an ordinary loan on personal security, which the Court never sanctions (*g*). And if the trustees ought not under the circumstances to have left *so large* a balance in the hands of the bankers, they will be liable for the excess beyond the proper balance (*h*). But trustees will not be liable for having left moneys in the hands of a respectable bank during the first year from the testator's death, when there are no special directions in the will for investment, and the estate has not been wound up (*i*). But they will be liable, if, during the first year they draw out of one bank money which ought, by the will, to be invested in Government stocks, and deposit it in another bank at interest, for this is an irregular investment and not a deposit; and a direction in the will that the trustees should not be liable for any *banker* was held not to be material (*j*).

9. **Mixing the trust property with private property.**—The trustee, wherever the trust property may be placed, [*298] * must always be careful not to amalgamate it with his own, for, if he do, the *cestui que trust* will be held entitled to every portion of the blended property, which the trustee cannot prove to be his own (*a*).

SECTION III.

OF CONVERSION.

1. **General principle.**—Express trusts for conversion, must, of course, be strictly pursued according to the directions (*b*),

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| (<i>g</i>) Darke v. Martyn, 1 Beav. 525. | Chedworth v. Edwards, 8 Ves. 46; |
| (<i>h</i>) Astbury v. Beasley, 17 W. R. 638. | White v. Lincoln, 8 Ves. 363; Fellows v. Mitchell, 1 P. W. 83; Gray v. Haig, 20 Beav. 219; Duke of Leeds v. Amherst, 20 Beav. 239; Mason v. Morley (No. 1), 34 Beav. 471, and S. C. (No. 2), Ib. 475; Cook v. Addison, 7 L. R. Eq. 466. |
| (<i>i</i>) Johnson v. Newton, 11 Hare, 160; Swinfen v. Swinfen (No. 5), 29 Beav. 211. | |
| (<i>j</i>) Rehden v. Wesley, 29 Beav. 213. | |
| (<i>a</i>) Lupton v. White, 15 Ves. 432; and Panton v. Panton, cited Ib. 440; | (<i>b</i>) See Craven v. Craddock, 20 L. T. N. S. 638. |